

BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.

20230930-DK-BUTTERFLY-1, INC.	X	
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	:	FMC Docket No. 25-01
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Complainant,:	:	
	:	
vs.	:	
	:	
BAL CONTAINER LINE CO., LIMITED,	:	
	:	
	:	
Respondent.:	:	
	:	
	:	
	X	

JOINT MOTION TO BRIEFLY EXTEND EXPERT DEPOSITION DEADLINE

Pursuant to 46 C.F.R. Sections 502.69 and 502.102 of the Federal Maritime Commission's Rules of Practice and Procedure, Complainant 20230930-DK-BUTTERFLY-1, Inc., formerly known as Bed Bath & Beyond, Inc. ("Complainant" or "BBBY"), and Respondent BAL Container Line Co., Limited ("Respondent" or "BAL" and, collectively with BBBY, the "Parties"), by and through their undersigned counsel, hereby submit this Joint Motion to Briefly Extend Expert Deposition Deadline ("Motion") respectfully requesting an **eight-day extension** of the expert deposition deadline and close of discovery date set forth in the Presiding Officer's Fifth Revised Scheduling Order, **from April 15, 2026 to April 23, 2026**. The Parties request this relief on the grounds that one of Respondent's expert witnesses is unavailable for deposition in the remaining days before the current deadline, due to pressing tax preparation work that is due on April 15, 2026. As detailed further herein, the Parties do not request relief from any other deadline in the Fifth Revised Scheduling Order and do not anticipate that the requested relief will lead to undue delay or prejudice as the Parties prepare for briefing on the merits.

Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." Good cause exists for the extension requested herein.

The Parties have been working towards accomplishing their remaining discovery obligations, as contemplated by the Fourth and Fifth Revised Scheduling Orders. The Parties exchanged expert reports on January 20, 2026, and February 10, 2026, respectively. Complainant provided a report by Mr. John McCown and Respondent provided reports from Messrs. Gary Kardian and Carl Vogt. Following the entry of the Fifth Revised Scheduling Order, counsel for Respondent travelled to Hong Kong to facilitate the additional corporate deposition of BAL, as ordered by the Presiding Officer in Docket Entry No. 56. The additional corporate deposition occurred on February 27, 2026, without issue. The Fifth Revised Scheduling Order further contemplated the exchange of supplemental expert reports, with Complainant to provide a report by March 13, 2026, and Respondent to provide a responsive report by March 27, 2026. Per the Parties' stipulation, the supplemental reports would have been limited to testimony provided in BAL's additional corporate deposition. Complainant elected not to supplement its expert report on March 13, 2026.

The Parties have further worked collectively to schedule the depositions of their respective experts, at times mutually agreeable for the Parties and experts. Though the Parties have endeavored to schedule all depositions prior to the close of discovery, Mr. Vogt is unavailable prior to April 15, 2026. **Mr. Vogt is a certified public accountant, currently inundated with the preparation and filing of tax returns.** Mr. Vogt's work has reached a fever pitch in recent

days, as the federal tax filing deadline approaches. Unfortunately, this filing deadline falls on the same date the Parties are set to complete expert depositions under the Fifth Revised Scheduling Order. To accommodate these scheduling concerns, the Parties jointly request a modest, eight-day extension of the current expert deposition deadline and close of discovery date. Doing so allows Complainant to depose Mr. Vogt on the soonest date he and the Parties are available. The Parties have proposed the following deposition schedule:

Witness	Noticing Party	Date
John McCown	Respondent	April 13, 2026
Gary Kardian	Complainant	April 14, 2026
Carl Vogt	Complainant	April 23, 2026

The Parties do not believe granting the requested relief will impose an undue burden on any Party or any unnecessary delay in this proceeding, **since the remaining deadlines in this proceeding will remain in place**. Pursuant to 46 C.F.R. Section 502.71, the Parties have met and conferred regarding this joint Motion and agree that the requested, brief extension is desirable and reasonable given the circumstances.

WHEREFORE, the Parties respectfully request that their Joint Motion to Briefly Extend Expert Deposition Deadline be granted

[Signature Page Follows]

DATED: April 6, 2026

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 6th day of April 2026, a true and correct copy of the foregoing **JOINT MOTION TO BRIEFLY EXTEND EXPERT DEPOSITION DEADLINE** was served via electronic mail on:

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Matthew J. Reynolds
J. Zachery Morris
Gregory A. Crapanzano II
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